

**BEFORE THE
COMMISSION ON TEACHER CREDENTIALING
STATE OF CALIFORNIA**

In the Matter of the Accusation Against:

DANIEL ALVAREZ-IBARRA, Jr., Respondent

Agency Case No. 2-547415735

OAH No. 2024090573

PROPOSED DECISION

Matthew S. Block, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), State of California, heard this matter on April 14 and 15, 2025, in Sacramento, California.

Adriana Z. Lazark, Deputy Attorney General, represented Mary Vixie Sandy (complainant), Executive Director of the California Commission on Teacher Credentialing (Commission).

Matthew Chevedden, Attorney at Langenkamp, Curtis, Price, Lindstrom & Chevedden, represented Daniel Alvarez-Ibarra, Jr. (respondent) who was present.

Evidence was received, the record closed, and the matter submitted for decision on April 15, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. On June 9, 2023, the Commission issued respondent a Certificate of Clearance (Certificate). The Certificate will expire on July 1, 2028, unless renewed.

2. Respondent previously held the following credentials: (1) a Clear Single Subject Teaching Permit, which was issued on June 26, 2018, and expired on July 1, 2023; (2) a Preliminary Five Year Single Subject Teaching Permit, which was issued on January 4, 2016, and expired on February 1, 2021; (3) an Emergency 30-Day Substitute Teaching Permit, which was issued on September 21, 2015, and expired on October 1, 2016; and (4) a Certificate of Clearance, which was issued on October 11, 2013, and expired on November 1, 2018.

3. On September 3, 2024, complainant's representative signed and thereafter filed the Accusation against respondent in her official capacity. The Accusation alleged cause to discipline respondent's credentials based on behavior that complainant alleges constitutes: (1) unprofessional conduct; (2) immoral conduct; (3) acts of moral turpitude; (4) evident unfitness for service; and (5) persistent violation of refusal to obey the laws regulating the duties of persons serving in the public school system. More specifically, the Accusation alleged that during the fall 2022 semester, respondent made multiple disparaging and sexually suggestive comments to the high school students in his class.

4. As factors in aggravation, complainant alleges respondent engaged in multiple acts of wrongdoing demonstrating a pattern of misconduct, and that respondent's misconduct significantly harmed a child trusted to his care, the public, or

the education system. Complainant contends these factors demonstrate that a greater degree of adverse action is appropriate.

5. Respondent timely filed a Notice of Defense to the Accusation. The matter was set for evidentiary hearing before an ALJ of the OAH, an independent adjudicative agency of the State of California, pursuant to Government Code section 11500 et seq.

Background

6. The Met Sacramento (the Met) is a small, public charter school within the Sacramento City Unified School District (District). In addition to attending academic classes, students at the Met participate in internships in their chosen field of interest. To assist the students in obtaining internships, target academic goals, and provide the students with educational resources, students are placed into advisory classes. Students stay in the same advisory class for all four years with the same students and the same teacher. Advisory class teachers work closely with students and their families and are considered partners with the students on their academic journey.

7. Respondent was employed as a teacher at the Met during the fall 2022 semester. He taught biology and ethnic studies, and he was also assigned an advisory class of sophomore students. The advisory class had a different teacher during their freshman year, but that teacher left the Met to pursue other opportunities.

Respondent's Conduct During Fall 2022 Semester

8. In early October, several of the students in respondent's advisory class contacted the Met's principal with allegations that respondent made multiple

inappropriate comments in class. An investigation followed, during which the students were asked to prepare written statements to document what they observed in class.

9. Student 3 drafted a written statement about respondent's behavior and testified at hearing. He is presently a senior at Monterey Trail High School in Elk Grove, California. He attended the Met during his sophomore year and was in respondent's advisory class.

10. Student 3 believes respondent is a good academic teacher. At first, he found respondent to be approachable and enjoyed being in his class. However, shortly after the fall 2022 semester started, respondent began making comments that Student 3 found inappropriate and made him uncomfortable. For instance, when Student 3 and his friends were talking in a small group, respondent approached them and asked, "Do you nut?" Student 3 interpreted respondent's question as referring to ejaculation.

11. On another occasion, Student 3 overheard a female student ask to leave class to use the restroom, and respondent refused to allow her to leave. When the girl explained she needed to go to the restroom for feminine hygiene reasons, respondent told her she needed to tell him when she was "on [her] period." When the student became frustrated and stormed out of the room, respondent told the rest of the class she was just mad because she was "on her period."

12. Student 3's close friend, Student 7, was also in respondent's advisory class. Student 7's father passed away during his freshman year. He had difficulty processing the loss and struggled academically as a result. Student 7 drafted a written statement about respondent's behavior. He and his mother testified at hearing.

13. Student 7 is prescribed attention-deficit/hyperactivity disorder (ADHD) medication. When he was taking it in class one day, respondent commented that

Student 7 was “popping pills.” He also publicly offered his opinion that people act differently when they take ADHD medication. Student 7 believes respondent was referring to him. According to Student 7, respondent also frequently referred to students as “bitches” and “assholes.” During the second week of school, he asked all the female students in the class if they were “done with their periods” and ready to cooperate, as he felt they had been disagreeable the prior week due to their menstrual cycles.

14. Student 5 drafted a written statement about respondent’s behavior and testified at hearing. She is presently a senior at the Met. She was in respondent’s advisory class during her sophomore year. She remembers respondent making comments about students “popping pills” but does not remember if he was referring to a particular student. According to Student 5, respondent publicly compared a student’s mood when taking ADHD medication to the female students’ moods when they were “on their periods.” She also recalls respondent telling female students he was “letting things go” behaviorally because they were on their periods.

15. Student 5 also testified that respondent discussed topics with students that made her uncomfortable. For instance, he openly discussed that he had previously attempted to end his own life. According to Student 5, respondent told the students that having feelings of despair and suicidal ideation was just “kind of normal.” Although the discussion made her uncomfortable, she does not believe respondent intended any harm to the students. She feels like the comments he made came across worse than respondent intended.

16. Student 6 drafted a written statement about respondent’s behavior and testified at hearing. She was in respondent’s advisory class during her sophomore year at the Met. She felt that respondent made a concerted effort to connect with students,

but his behavior soon became overly familiar and inappropriate. She testified that he made comments about a male student touching himself in the school restroom, and about female students “touching themselves” at home or in the school restroom. She also recalled two occasions where respondent spoke to female students about their periods.

17. Student 8 drafted a written statement about respondent’s behavior. She and her mother testified at hearing. Student 8 was in respondent’s advisory class during her sophomore year at the Met. Prior to attending the Met, Student 8 attended another school where she was frequently truant and had low grades. On one occasion in the fall 2022 semester, respondent called her over to his desk, where he told her, “You fucked up at your last school, now you’re fucking up here.” He then brought up her poor attendance at her previous school, and said, “It’s already dangerous out there for a little girl, but then add a dick to it.” Respondent’s comments made Student 8 uncomfortable, because she believed he was referencing her getting raped or having sexual intercourse with people she randomly met on the street. Student 8’s mother testified she was frustrated respondent spoke to her daughter in that fashion, as she already suffered from low esteem.

18. Student 8 recalls respondent asking a male student if he “nuts,” and asking another male student if he was going to the restroom to “jerk off.” He told students of his mental health struggles and previous suicide attempt. He also professed to have once been a cocaine dealer, and discussed the different sensations of being intoxicated from different types of alcohol. According to Student 8, the advisory class was “not at all” productive.

19. In other written statements, students reported respondent telling the class he was “not turned on” by any of them, and that they were all “horny.” A student

also reported that respondent had a conversation with a group of students about when to “pull out” during sexual intercourse. Another student wrote that on one occasion, while respondent was erasing a penis that one of the students had drawn on the classroom white board, he looked back at the class and asked if he could now say that he rubbed a penis. Additionally, several students reported physical contact, including touching a female student on the forehead and trying to trip students with his cane.

Respondent’s Evidence

20. Respondent called Leticia Moran to testify on his behalf. Ms. Moran has been a teacher since 2005. She is presently employed by the District as a physics teacher at Hiram Johnson High School (Hiram Johnson).

21. Ms. Moran has known respondent for several years and they have become very close friends. He is the only colleague she has ever invited into her home to meet her family. She believes he is a very knowledgeable teacher and cares deeply about his students. She has observed respondent teaching and interacting with students and described him as “casual but no nonsense.”

22. Ms. Moran is aware of the allegations against respondent. While she supports him and values their friendship, she acknowledges the statements respondent made to the students in his advisory class at the Met were “very inappropriate.” She believes respondent made the comments because he was trying to relate to the students, and because he tends to attempt to normalize certain topics that others might consider “taboo.” According to Ms. Moran, “teachers say stupid things all the time,” and she admits that she has used profanity in the classroom on occasion. However, she has never referred to students as “bitches” or “assholes,” never

asked female students about their menstrual cycle, and never made comments about masturbation or ejaculation in the classroom. Ms. Moran feels respondent's behavior and errors in judgment are correctable. She sincerely believes respondent wants to be "the best version of himself."

23. Respondent testified at hearing. He initially went to school to become a psychologist. As part of his educational program, he was required to complete a predesignated number of volunteer hours. He started volunteering at the Sacramento County Food Bank as a tutor for individuals seeking to earn their General Educational Development certificate. It was then that he decided to switch majors and become a teacher.

24. Respondent started teaching at Hiram Johnson in 2016. The population was diverse and student behavior was challenging, but he loved teaching there. However, after the 2021/2022 academic year, Hiram Johnson eliminated biology from its curriculum. Respondent was notified that he would not be retained as a teacher at Hiram Johnson, but the District provided him with a list of available positions at other District schools. The only full-time position on the list was a biology teacher position at the Met, which respondent accepted. However, after he was hired, respondent was informed he would also be teaching an ethnic studies class and an advisory class. He had never taught either class, and he was unfamiliar with the advisory concept.

25. Respondent found the culture at the Met to be very different than Hiram Johnson. Students call teachers by their first names, and it is not a traditional learning environment. Respondent did his best to fit in with his students. In trying to do so, he used language and made comments that he should not have. For instance, respondent admits frequently using profanity during the advisory class. At the time, he felt that doing so would help endear him to the students as someone they could relate to and

connect with. In retrospect, he understands that he needed to be "the adult in the room," and that gratuitously using profanity was very unprofessional in an educational setting.

26. Respondent admits that he asked a male student, "You don't nut?" He was passing out almonds to the students and one of them said they did not want a snack that contained nuts. Respondent knew as soon as the words came out of his mouth that he had misspoken, and he told the students, "you know what I mean."

27. Respondent admits making comments about the female menstrual cycle. It started when he made a "bad joke" about premenstrual syndrome. Respondent knows he should never have made the comment. However, after he did, the students would bring the subject up all the time. He would respond in turn, which "dug [him] even deeper."

28. Respondent admits telling his advisory students that he was not physically turned on by any of them during the first week of school. While he and the students were getting to know each other, respondent shared that he is asexual. It was in that context that he told the students he was not turned on by any of them. He was trying to be open with the students about his life and saw it as an opportunity to educate them about inclusivity.

29. Respondent admits telling Student 8 that she was "fucking up [at the Met]." He explained he did so for "shock value" to emphasize the importance of attending class. He also admits saying, "It's already dangerous out there for a little girl, but then add a dick to it." He understands it would be reasonable for a person to interpret the comment as sexual and acknowledges Student 8 appeared "stunned" when he said it. According to respondent, the Met is in a poor area of downtown

Sacramento. He used the term "dick" to refer to a bad person that Student 8 may encounter on the street if she is truant from school. He was not referring to male genitalia.

30. Respondent admits having a conversation with students about when to "pull out" during sexual intercourse. He overheard a conversation in which a student stated that "pulling out" was a suitable form of birth control. Respondent used the opportunity to try to educate the students, and presented them with statistics demonstrating that it is not.

31. Respondent admits making a comment about touching a male penis when he erased the drawing on the white board. According to respondent, students in his classes would routinely draw "five penises per day" on the white board. His practice was to make the person who drew the picture erase it if he caught them in the act. When he did not catch the person, he would erase the drawing himself. Respondent was attempting to make a joke he thought the students would find funny. Nonetheless, he realizes that by making the joke he was validating the immature behavior of the student who drew the picture.

32. Respondent admits telling a male student to go to the school restroom to masturbate. The student was disrupting class by acting like he was masturbating and banging the bottom of his desk with his fist. Respondent told him that the behavior was inappropriate for the classroom, and that he needed to go to the bathroom in private if he was unable to control his biological urges.

33. Respondent admits openly discussing his prior attempt to end his own life in class. He did so after a student publicly disclosed in class that they were depressed and considering suicide. Respondent thought it would have been

dangerous to ignore the statement. He is open about his own prior mental health struggles to let others know there is hope, and that asking for help is not a sign of weakness. He recalls that when he had the discussion with the class, the students were very quiet, as if they were “processing” what he shared with them.

34. Respondent admits touching a female student on the forehead. The gesture comes from Itachi, a character in a Japanese manga series called Naruto, which he and the student were discussing at the time. When he touched her forehead, the student asked, “Really, Itachi?” Respondent did not believe the student was offended and interpreted her response to mean that she did not like the character. However, he now understands how she may have felt like respondent was invading her personal space.

35. Respondent understands that he never should have publicly commented on the menstrual cycles of his female students, and that it was unfair to publicly embarrass them. He also understands that despite good intentions, his sexualized comments were inappropriately made outside of an educational context. Although he did not intend his comments about Student 8’s attendance to be interpreted as sexual, in retrospect he understands why they could be.

36. Respondent resigned from the District, effective June 30, 2023, and is not presently teaching. Going through the Commission’s disciplinary process has been a humbling experience for him. Even though he acknowledges errors in his judgment while teaching at the Met, he believes he is a good teacher, and he would like to return to teaching if afforded the opportunity.

37. Respondent submitted several letters of support, two of which were written by his former colleagues at Hiram Johnson. The first was written by Adriene Jackson, who wrote, in relevant part:

[Respondent] and I worked together as teachers in the science department at Hiram Johnson HS from 2015 to 2022. During that time, I had the opportunity to observe his interactions with students and the rapport he had with them. At lunch time, [respondent's] room was full of students who came there because they respected him and were comfortable around him. Over the course of our time working together, I also had conversations with [respondent] about students. In those conversations, it was obvious how much he cared about them. Whenever I walked into his classroom during instruction time, students were engaged and on task as he circulated and helped them with class work.

38. The other letter was written by Ramiro Hernandez, who wrote, in relevant part:

For several years, I had the privilege of working alongside [respondent] at Hiram Johnson High School in Sacramento, California. During that time, I witnessed firsthand his unwavering commitment to fostering a love of science and learning in his students, as well as an unparalleled ability to develop supportive relationships with a culturally and linguistically diverse population of learners.

Analysis

39. Complainant bears the burden of proving the allegations in the Accusation by clear and convincing evidence. She has met her burden. Respondent made multiple disparaging and inappropriate comments to students in his advisory class at the Met. In his testimony, respondent admitted gratuitously using profanity, discussing the menstrual cycles of female students, making comments about masturbation and ejaculation, and making comments about ADHD medication when he knew a student in the class was prescribed ADHD medication. Complainant also established, and respondent admits, that he told Student 8 she was “fucking up” at the Met, and that “[i]t’s already dangerous out there for a little girl, but then add a dick to it.” Respondent acknowledges his behavior was completely inappropriate and unbecoming of an educator.

40. In *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, the California Supreme Court concluded that a teaching credential cannot be disciplined for immoral conduct, unprofessional conduct, or conduct involving moral turpitude “unless that conduct indicates that the [educator] is unfit to teach.” (*Id.* at p. 229.) The Court outlined factors to consider when determining whether an educator’s conduct demonstrates unfitness to teach, which have been codified in California Code of Regulations, title 5, section 80302, subdivision (a). The factors are:

- (1) the likelihood that the conduct may have adversely affected students or fellow teachers, and the degree of such adversity anticipated;
- (2) the proximity or remoteness in time of the conduct;

- (3) the types of credentials held or sought by the person involved;
- (4) any extenuating or aggravating circumstances surrounding the conduct;
- (5) the praiseworthiness or blameworthiness of the motives resulting in the conduct;
- (6) the likelihood of recurrence of the question conduct;
- (7) the extent to which disciplinary action may have an adverse impact or chilling effect on the constitutional rights of the person involved, or other teachers; and
- (8) the publicity or notoriety given to the conduct.

LIKELIHOOD OF ADVERSE EFFECTS ON STUDENTS OR OTHER TEACHERS

41. Respondent's conduct caused the students in his advisory class to feel uncomfortable. He made disparaging comments about his female students' behavior which he attributed to their menstrual cycle. He embarrassed a female student by refusing to allow her restroom access to tend to her personal hygiene needs and told her she needed to tell him when she is "on [her] period." He also made comments about male and female students touching themselves at home and in the school restroom. Multiple students testified that they were embarrassed and offended by respondent's behavior. There is no evidence of any adverse effects on other teachers.

PROXIMITY OR REMOTENESS IN TIME

42. The incidents occurred over two and a half years ago. They are more remote than proximate in time.

TYPES OF CREDENTIALS HELD OR SOUGHT

43. Respondent presently holds a Certificate of Clearance, which verifies he meets the personal qualifications necessary to obtain a regular teaching or services credential. (Cal. Code Regs., tit. 5, § 80028.) He previously held other credentials, including a Clear Single Subject Teaching Permit, over which the Commission retains jurisdiction. (Ed. Code, § 44440, subd. (b).)

EXTENUATING OR AGGRAVATING CIRCUMSTANCES

44. Neither the Education Code nor the applicable regulations specify what constitutes "extenuating circumstances." However, California Code of Regulations, title 5, section 80300, subdivision (m), defines "mitigating factor" as "an event or circumstance which demonstrates that the public, school children and the profession would be adequately protected by a more lenient degree of adverse action or no adverse action whatsoever." California Code of Regulations, title 5, section 80300, subdivision (b), lists aggravating factors, the presence of which indicate a greater degree of discipline is necessary to protect students and the teaching profession. These factors include, in pertinent part: (1) a prior record of adverse action; (2) that the misconduct significantly harmed a child, the public, or the educational system; and (3) the credential holder demonstrated indifference toward the consequence of the misconduct.

45. Respondent has no prior disciplinary record with the Commission. During the fall 2022 semester, he was struggling to adapt to a new student body in an unfamiliar educational environment. Respondent made some of the comments at issue in this case in a poor attempt to connect with his students. He admitted all the allegations in the Accusation and repeatedly acknowledged that he behaved poorly. (*Seide v. Com. of Bar Examiners* (1989) 49 Cal.3d 933, 940 [“Fully acknowledging the wrongfulness of [one’s] actions is an essential step towards rehabilitation.”].)

46. Nonetheless, respondent made a series of disparaging and inappropriate comments to a classroom of impressionable high school sophomores. His comments and questions about his female students’ menstrual cycles were intrusive and incredibly offensive. Regardless of his motives, as he candidly testified, respondent should have acted like “the adult in the room.”

PRAISEWORTHINESS OR BLAMEWORTHINESS OF MOTIVES

47. Respondent acknowledges behaving inappropriately toward the students in his advisory class. He testified that some of the behavior was attributable to him trying to acclimate to the Met and fit in with his students. It is difficult to see how referring to the female menstrual cycle, or discussing a student’s ADHD medication, would enable him to do so. However, he credibly testified that his intention in making some comments was to educate or maintain decorum in the classroom. Notably, while several of respondent’s comments were sexual in nature, they do not appear to have been motivated by any deviant interest in a sexual relationship with any of his students.

LIKELIHOOD OF RECURRENCE

48. Respondent resigned from the Met and is presently not teaching. He no longer has any contact with any of the students from the advisory class. He also testified that going through the Commission's disciplinary process has been a humbling and eye-opening experience. He feels he is now better equipped to establish and maintain boundaries in the classroom. He taught at Hiram Johnson for years without any disciplinary issues with the Commission. The behavior occurred while respondent was struggling to adapt his teaching style to the culture at the Met, and appears to have been caused, at least in part, by the difficulties he experienced in an unfamiliar educational environment. When all the evidence is considered, respondent's behavior appears unlikely to recur.

CHILLING EFFECT

49. There is no evidence that disciplining respondent's Certificate would adversely impact or chill respondent or any other teacher in the free exercise of their constitutional rights.

PUBLICITY OR NOTORIETY GIVEN TO CONDUCT

50. No evidence was presented that the conduct at issue was either publicized or notorious.

Conclusion

51. Complainant proved each of the allegations by clear and convincing evidence. Respondent engaged in immoral and unprofessional conduct involving moral turpitude. He persistently defied and refused to obey the laws regulating the duties of a teacher, and his behavior demonstrates his evident unfitness for service.

When all the evidence is considered in light of the *Morrison* factors, complainant established respondent's unfitness to teach. However, in light of the mitigating evidence addressed in Factual Findings 45, 47, and 48, outright revocation of his Certificate and other credentials is not warranted. Suspending his Certificate and other credentials for two years is sufficient to protect children, the public, and the teaching profession.

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. Complainant bears the burden of proving the allegations in the Accusation by clear and convincing evidence to a reasonable certainty. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035.) Clear and convincing evidence requires proof that is so clear as to leave no substantial doubt and that is sufficiently strong to command the unhesitating assent of every reasonable mind. (*In re Marriage of Brooks & Robinson* (2008) 169 Cal.App.4th 176, 190.)

Applicable Law

2. Pursuant to the Education Code, commencing with section 44000, and California Code of Regulations, title 5, commencing with section 80000, the Commission is responsible for credentialing teachers in public schools in California, including issuing credentials and taking adverse action against applicants and credential holders.

3. Education Code section 44345 provides in part:

The Commission may deny any application for the issuance of a credential or for the renewal of a credential made by an applicant who falls under any of the following categories:

[¶] . . . [¶]

(e) Has committed any act involving moral turpitude.

Any denial pursuant to subdivisions (a) to (e), inclusive, shall be based upon reasons related to the applicant's fitness to teach or fitness to perform other duties which the credential would authorize the applicant to perform.

4. Moral turpitude has been described as "any crime or misconduct committed without excuse, or 'any dishonest or immoral' act not necessarily a crime." (*Clerici v. Dept. of Motor Vehicles* (1990) 224 Cal.App.3d 1016, 1017.)

5. Education Code section 44421 provides, in part:

The Commission on Teacher Credentialing shall privately admonish, publicly reprove, revoke, or suspend for immoral or unprofessional conduct, or for persistent defiance of, and refusal to obey, the laws regulating the duties of persons serving in the public school system, or for any cause that would have warranted the denial of an application for a credential or the renewal thereof, or for evident unfitness for service.

6. Education Code section 44440, subdivision (b), provides:

The suspension or expiration of any credential, its surrender without the written consent of the commission, or a revocation pursuant to Section 44423 does not deprive the commission of its authority to do the following:

- (1) Institute or continue a disciplinary proceeding against the credential holder upon any ground provided by law.
- (2) Enter an order suspending or revoking the credential.
- (3) Issue a public reproof or private admonition to the credential holder.

California Code of Regulations, title 5, section 80300, states in part:

[¶] . . . [¶]

(b) "Aggravating factor" is an event or circumstance which demonstrates that a greater degree of adverse action for an act of professional misconduct is needed to adequately protect the public, schoolchildren or the profession.

Aggravating factors may include, but are not limited to, the following:

[¶] . . . [¶]

(2) that the misconduct evidences multiple acts of wrongdoing or demonstrates a pattern of misconduct;

[¶] . . . [¶]

(4) that the misconduct significantly harmed a child entrusted to the care of a credential holder or applicant, significantly harmed the public or the educational system;

7. As set forth in Factual Finding 34, California Code of Regulations, title 5, section 80302, subdivision (a), sets forth the factors to consider “to determine the relationship between the alleged misconduct and the applicant’s or holder’s fitness, competence, or ability to effectively perform the duties authorized by the credential.”

8. The California Supreme Court has recognized that the terms “immoral conduct” and “unprofessional conduct” substantially overlap one another and conduct that constitutes one often includes the other. (*Morrison v. State Bd. of Ed.*, *supra*, 1 Cal.3d at p. 221, fn. 9.) Additionally, in *San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, the court explained:

Moreover, the definition of immoral or unprofessional conduct must be considered in conjunction with the unique position of public school teachers, upon whom are imposed “responsibilities and limitations on freedom of action which do not exist in regard to other callings.” [Citation.]

(*Id.*, at p. 1466.)

9. Immoral conduct is sometime considered as synonymous with “dishonesty” or a high degree of unfairness. (*Bd. of Ed. of the San Francisco Unified School Dist. v. Weiland* (1960) 179 Cal.App.2d 808, 811.) The court explained in *Palo Verde Unified School District of Riverside v. Hensey* (190) 9 Cal.App.3d 967, 972:

The term “immoral” has been defined as that which is hostile to the welfare of the general public and contrary to good morals. Immorality includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare.

10. “Evident unfitness for service” means a teacher is clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies. (*Woodland v. Joint Unified School District v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, 1444.) “Unlike ‘unprofessional conduct,’ ‘evident unfitness for service’ connotes a fixed character trait, presumably not remediable merely on receipt of notice that one’s conduct fails to meet the expectations of the employing school district.” (*Id.* at p. 1445.)

Causes for Discipline

11. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent committed acts constituting unprofessional conduct in or around October 2022. Consequently, cause exists to discipline his Certificate pursuant to Education Code section 44421.

12. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent committed acts of immoral conduct in or around October 2022. Consequently, cause exists to discipline respondent’s Certificate pursuant to Education Code section 44421.

13. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent committed acts of moral turpitude in or around October 2022. Consequently, cause exists to discipline respondent's Certificate pursuant to Education Code section 44435, subdivision (e).

14. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent committed acts demonstrating his evident unfitness for service in or around October 2022. Consequently, cause exists to discipline respondent's Certificate pursuant to Education Code section 44421.

15. Based on the Factual Findings and Legal Conclusions as a whole, complainant established by clear and convincing evidence that respondent persistently defied and refused to obey the laws regulating the duties of a teacher. Consequently, cause exists to discipline respondent's Certificate pursuant to Education Code section 44421.

Aggravating Factors

16. Based on the Factual Findings as a whole, complainant established by clear and convincing evidence that respondent's conduct evidences multiple acts of wrongdoing and demonstrates a pattern of misconduct, which is an aggravating factor. (Cal. Code Regs., tit. 5, § 80300, subd. (b)(2).) Complainant also established by clear and convincing evidence that respondent's conduct significantly harmed children entrusted to his care, which is another aggravating factor. (*Id.*, at subd. (b)(4).)

Appropriate Discipline

17. Pursuant to Education Code section 44421, the Commission shall privately admonish or publicly reprove a credential holder, or revoke or suspend his credential, if the credential holder has engaged in immoral or unprofessional conduct, action that warrants denial of an application for a credential or the renewal thereof, or is evidently unfit for service. The purpose of licensing proceedings is not punishment, but to protect the public. (*Fahmy v. Medical Bd. of California* (1995) 38 Cal.App.4th 810, 817.)

18. Careful consideration has been given to the available disciplinary options. Respondent's behavior at the Met was unacceptable. However, he has no prior record of discipline with the Commission, and he admitted that when he made the comments, he was struggling to professionally acclimate to an unfamiliar educational environment. Even some of the students testified that he was a good teacher and simply tried too hard to get along with the class. When all the evidence is considered, outright revocation of respondent's Certificate would be unduly punitive. However, discipline is warranted, and suspending respondent's Certificate and other credentials for two years is appropriate to protect children, the public, and the teaching profession.

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ORDER

The certificates and permits issued to respondent Daniel Alvarez-Ibarra, Jr. by the California Commission on Teacher Credentialing are hereby SUSPENDED for two years.

DATE: May 14, 2025

Matthew Block

MATTHEW S. BLOCK

Administrative Law Judge

Office of Administrative Hearings